

are bound, every man to every man, to Own, and be reputed Author of all, that he that already is their Sovereigne, shall do, and judge fit to be done : so that any one man dissenting, all the rest should break their Covenant made to that man, which is injustice : and they have also every man given the Sovereignty to him that beareth their Person ; and therefore if they depose him, they take from him that which is his own, and so again it is injustice. Besides, if he that attempteth to depose his Sovereign, be killed, or punished by him for such attempt, he is author of his own punishment, as being by the Institution, Author of all his Sovereign shall do : And because it is injustice for a man to do any thing, for which he may be punished by his own authority, he is also upon that title, unjust. And whereas some men have pretended for their disobedience to their Sovereign, a new Covenant, made, not with men, but with God ; this also is unjust : for there is no Covenant with God, but by mediation of some body that representeth Gods Person ; which none doth but Gods Lieutenant, who hath the Sovereignty under God. But this pretence of Covenant with God, is so evident a lye, even in the pretenders own consciences, that it is not onely an act of an unjust, but also of a vile, and unmanly disposition.

Secondly, Because the Right of bearing the Person of them all, is given to him they make Sovereigne, by Covenant onely of one to another, and not of him to any of them ; there can happen no breach of Covenant on the part of the Sovereigne ; and consequently none of his Subjects, by any pretence of forfeiture, can be freed from his Subjection. That he which is made Sovereigne maketh no Covenant with his Subjects before-hand, is manifest ; because either he must make it with the whole multitude, as one party to the Covenant ; or he must make a severall Covenant with every man. With the whole, as one party, it is impossible ; because as yet they are not one Person : and if he make so many severall Covenants as there be men, those Covenants after he hath the Sovereignty are voyd, because what act soever can be pretended by any one of them for breach thereof, is the act both of himselfe, and of all the rest, because done in the Person, and by the Right of every one of them in particular. Besides, if any one, or more of them, pretend a breach of the Covenant made by the Sovereigne at his Institution ; and others, or one other of his Subjects, or himselfe alone, pretend there was no such breach, there is in this case, no Judge to decide the controversie : it returns therefore to the Sword again ; and every man recovereth the right of Protecting himselfe by his own strength, contrary to the designe they had in the Institution. It is therefore in vain to grant Sovereignty by way of precedent Covenant. The opinion that any Monarch receiveth his Power by Covenant, that is to say on Condition, proceedeth from want of understanding this easie truth, that Covenants being but words, and breath, have no force to oblige, contain, constrain, or protect any man, but what it has from the publique Sword ; that is, from the untied hands of that Man, or Assembly of men that hath the Sovereignty, and whose actions are avouched by them all,

2. Sovereigne Power cannot be forfeited.



all, and performed by the strength of them all, in him united. But when an Assembly of men is made Sovereigne; then no man imagineth any such Covenant to have past in the Institution; for no man is so dull as to say, for example, the People of *Rome*, made a Covenant with the Romans, to hold the Sovereignty on such or such conditions; which not performed, the Romans might lawfully depose the Roman People. That men see not the reason to be alike in a Monarchy, and in a Popular Government, proceedeth from the ambition of some, that are kinder to the goverment of an Assembly, whereof they may hope to participate, than of Monarchy, which they despair to enjoy.

3 *No man can without injustice protest against the Institution of the Sovereigne declared by the major part.*

Thirdly, because the major part hath by consenting voices declared a Sovereigne; he that dissented must now consent with the rest; that is, be contented to avow all the actions he shall do, or else justly be destroyed by the rest. For if he voluntarily entered into the Congregation of them that were assembled, he sufficiently declared thereby his will (and therefore tacitely covenanted) to stand to what the major part should ordayne: and therefore if he refuse to stand thereto, or make Protestation against any of their Decrees, he does contrary to his Covenant, and therefore unjustly. And whether he be of the Congregation, or not; and whether his consent be asked, or not, he must either submit to their decrees, or be left in the condition of warre he was in before; wherein he might without injustice be destroyed by any man whatsoever.

4 *The Sovereigns Actions cannot be justly accused by the Subject*

Fourthly, because every Subject is by this Institution Author of all the Actions, and Judgments of the Sovereigne Instituted; it followes, that whatsoever he doth, it can be no injury to any of his Subjects; nor ought he to be by any of them accused of Injustice. For he that doth any thing by authority from another, doth therein no injury to him by whose authority he acteth: But by this Institution of a Common-wealth, every particular man is Author of all the Sovereigne doth; and consequently he that complaineth of injury from his Sovereigne, complaineth of that whereof he himselfe is Author; and therefore ought not to accuse any man but himselfe; no nor himselfe of injury; because to do injury to ones selfe, is impossible. It is true that they that have Sovereigne power, may commit Iniquity; but not Injustice, or Injury in the proper signification.

5. *Whatsoever the Sovereigne doth, is unpunishable by the Subject.*

Fifthly, and consequently to that which was sayd last, no man that hath Sovereigne power can iustly be put to death, or otherwise in any manner by his Subjects punished. For seeing every Subject is Author of the actions of his Sovereigne; he punisheth another, for the actions committed by himselfe.

6. *The Sovereigne is judge of what is necessary for the Peace and Defence of his Subjects.*

And because the End of this Institution, is the Peace and Defence of them all; and whosoever has right to the End, has right to the Means; it belongeth of Right, to whatsoever Man, or Assembly that hath the Sovereignty, to be Judge both of the meanes of Peace and Defence; and also of the hindrances, and disturbances of the same; and to do whatsoever he shall think necessary to be done, both before hand, for the preserving of Peace and Security, by prevention of Discord at home, and Hostility



Hostility from abroad ; and , when Peace and Security are lost , for the recovery of the same . And therefore ,

Sixtly , it is annexed to the Sovereignty, to be Judge of what Opinions and Doctrines are averse , and what conducing to Peace ; and consequently, on what occasions, how farre, and what, men are to be trusted withall, in speaking to Multitudes of people ; and who shall examine the Doctrines of all bookes before they be published. For the Actions of men proceed from their Opinions; and in the well governing of Opinions, consisteth the well governing of mens Actions, in order to their Peace, and Concord. And though in matter of Doctrine, nothing ought to be regarded but the Truth ; yet this is not repugnant to regulating of the same by Peace. For Doctrine repugnant to Peace, can no more be True, than Peace and Concord can be against the Law of Nature. It is true, that in a Common-wealth; where by the negligence, or unskilfullnesse of Governours , and Teachers, false Doctrines are by time generally received; the contrary Truths may be generally offensive: Yet the most sudden , and rough busling in of a new Truth, that can be, does never breake the Peace, but only somtimes awake the Warre . For those men that are so remissely governed, that they dare take up Armes, to defend , or introduce an Opinion , are still in Warre ; and their condition not Peace, but only a Cessation of Armes for feare of one another ; and they live as it were, in the procincts of battaile continually. It belongeth therefore to him that hath the Sovereign Power, to be Judge, or constitute all Judges of Opinions and Doctrines, as a thing necessary to Peace; therby to prevent Discord and Civill Warre.

*And Iudge of what Doctrines are fit to be taught them.*

Seventhly, is annexed to the Sovereigntie , the whole power of prescribing the Rules, whereby every man may know, what Goods he may enjoy, and what Actions he may doe, without being molested by any of his fellow Subjects: And this is it men call *Propriety*. For before constitution of Sovereign Power (as hath already been shewn) all men had right to all things ; which necessarily causeth Warre: and therefore this Proprietie, being necessary to Peace, and depending on Sovereign Power, is the Act of that Power , in order to the publique peace . These Rules of Propriety (or *Meum* and *Tuum*) and of *Good*, *Evill*, *Lawfull*, and *Unlawfull* in the actions of Subjects, are the Civill Lawes; that is to say, the Lawes of each Common-wealth in particular; though the name of Civill Law be now restrained to the antient Civill Lawes of the City of *Rome*; which being the head of a great part of the World, her Lawes at that time were in these parts the Civill Law .

*7 The Right of making Rules, whereby the Subjects may every man know what is so his owne, as no other Subject can without injustice take it from him.*

Eightly, is annexed to the Sovereigntie, the Right of Judicature ; that is to say, of hearing and deciding all Controversies, which may arise concerning Law, either Civill, or Naturall, or concerning Fact. For without the decision of Controversies, there is no protection of one Subject, against the injuries of another ; the Lawes concerning *Meum* and *Tuum* are in vaine ; and to every man remaineth, from the naturall and necessary appetite of his own conservation, the right of protecting himselfe by his private strength, which is the condition

*8 To him also belongeth the Right of all Judicature and decision of Controversie :*